| STATE OF MICHIGAN<br>JUDICIAL CIRCUIT<br>COUNTY | DEFAULT<br>REQUEST AND ENTRY | CASE NO. and JUDGE |
|---|---|---|

Court address | Court telephone no.

| Plaintiff's name, address, and telephone no. | v | Defendant's name, address, and telephone no. |
|---|---|---|
| Plaintiff's attorney, bar no., address, and telephone no. | | Defendant's attorney, bar no., address, and telephone no. |

Party in default: _____

## REQUEST

1. I request the clerk to enter the default of the party named above for failure to plead or otherwise defend as provided by law.

2. The defaulted party is not an infant or incompetent person.

3. ☐ It is unknown whether the defaulted party is in the military service. ☒ The defaulted party is not in the military service.
   ☐ The defaulted party is in the military but there has been notice of pendency of the action and adequate time and opportunity to appear and defend has been provided. Attached, as appropriate, is a waiver of rights and protections provided under the Servicemembers Civil Relief Act. Facts upon which this conclusion is based are: (specify)

4. This request is made on my personal knowledge and, if sworn as a witness, I can testify competently to the facts in this request.

I declare under the penalties of perjury that this request has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

_____
Applicant/Attorney signature

Subscribed and sworn to before me on _____ .
Date

_____
Deputy clerk/Notary public signature

My commission expires on _____ .

_____
Name (type or print)

Notary public, State of Michigan, County of _____ . ☐ Acting in the County of _____ .
☐ This notarial act was performed using an electronic notarization system or a remote electronic notarization platform.



Distribute form to:
Court
Applicant
All other parties

**Case No.** _____

NOTE: Default can be entered by a district court clerk without the request of a party.

## DEFAULT ENTRY

The default of the party named above for failure to plead or otherwise defend is entered.

_____
Court clerk signature and date

Use note: The party who sought the entry of the default is responsible for serving all parties in accordance with MCR 2.603(A)(2).

## CERTIFICATE OF MAILING

I served a copy of this default request and entry on the parties or their attorneys by first-class mail addressed to their last-known addresses as defined by MCR 2.107(C)(3). I declare under the penalties of perjury that this certificate of mailing has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

_____
Date

_____
Signature